

CHAPTER 36.

An Act to amend the Parks Regulation Act, 1872.
 [15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Application.
 35 & 36 Vict.
 c. 15.

1. The Parks Regulation Act, 1872 (hereinafter referred to as the principal Act), shall apply to all parks, gardens, recreation grounds, open spaces and other land for the time being vested in, or under the control or management of, the Commissioners of Works, and accordingly in that Act the expression "park" shall include all such parks, gardens, recreation grounds, open spaces and land as aforesaid :

Provided that the provisions of the First Schedule to the principal Act shall not apply to any park to which those provisions did not apply immediately before the commencement of this Act.

Power to
 make regu-
 lations.

2.—(1) Subject to the provisions of this Act, the Commissioners of Works may make such regulations to be observed by persons using any park to which the principal Act applies, as they consider necessary for securing the proper management of the park, and the preservation of order and prevention of abuses therein, and if any person fails to comply with, or acts in contravention of, any regulations so made, he shall be guilty of an offence against the principal Act and shall be liable on conviction thereof by a court of summary jurisdiction to a penalty not exceeding five pounds.

(2) Before any regulation made under this Act comes into operation, a draft thereof shall be laid before each House of Parliament for a period of not less than twenty-one days on which that House has sat, and if either House before the expiration of that period presents an Address to His Majesty against the draft or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of any new draft regulation.

(3) As from and after the date upon which regulations made under this Act come into operation as respects any park, all references in the principal Act to regulations shall, as respects that park, be construed as references to regulations made under this Act.

(4) The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Commissioners of Works as though the Commissioners were included in the first column of the Schedule to the first-mentioned Act, and any Commissioner or the Secretary, or any person authorised to act on behalf of the Secretary, were mentioned in the second column of that Schedule, and as if the regulations referred to in those Acts included any regulations made under this Act.

31 & 32 Vict.
c. 37.
45 & 46 Vict.
c. 9.

3. Whereas under section four of the Board of Agriculture Act, 1889, the powers and duties of the Commissioners of Works under the principal Act have, as respects the Royal Botanic Gardens, Kew, been transferred to the Minister of Agriculture and Fisheries :

Application
to Royal
Botanic
Gardens,
Kew.
52 & 53 Vict.
c. 30.

Now, therefore, this Act shall apply to the Royal Botanic Gardens, Kew, as if references to the Minister of Agriculture and Fisheries were therein substituted for references to the Commissioners of Works.

4.—(1) This Act may be cited as the Parks Regulation (Amendment) Act, 1926, and the principal Act and this Act may be cited together as the Parks Regulation Acts, 1872 and 1926.

Short title,
citation,
extent, con-
struction
and repeal.

(2) This Act shall not extend to Northern Ireland.

(3) Except where the context otherwise requires, references in this Act to the principal Act shall be construed as references to that Act as amended by this Act, and this Act shall be construed as one with the principal Act.

(4) The provisions of the principal Act specified in Part I. of the Schedule to this Act are hereby repealed as from the commencement of this Act, and the provisions of that Act specified in Part II. of the said Schedule shall continue in force for a period of one year after the commencement of this Act and shall then be hereby repealed.

Section 4.

SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

PART I.

Provisions repealed from Commencement of Act.

Section 2.

In section 8 the words “ garden or possession ” in each place where those words occur.

In section 10 the word “ Royal.”

The Second Schedule.

PART II.

Provisions repealed upon expiration of One Year after Commencement of Act.

Section 4 (so far as unrepealed).

Section 9.

The First Schedule.

CHAPTER 37.

An Act to make better provision for the protection
against lead poisoning of persons employed in
painting buildings. [15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Regulations
as to use of
lead paint

1.—(1) The Secretary of State may make regulations for preventing danger from lead paint to persons employed in or in connection with the painting of buildings, and in particular—

(a) for prohibiting the use of any lead compound except in the form of paste or of paint ready for use;